

MISSOURI BAIL BOND & SURETY RECOVERY AGENT

24-Hour Master Licensing Training

This material is for demonstration purposes ONLY and is not approved training.

Department of Commerce & Insurance (DCI) Approved Initial Basic Training

The Professional Lifecycle of a Surety Agent

UNIT 1: Ground Zero Foundations The Authority

DAY ONE

1. Bond Process (1 hour) | Detained if screenshot

A. Appointment information goes from the parties involved. Be born at least 12 years old, no criminal record, no pending charges, no outstanding warrants, and no other legal issues. If a person fails to appear in court they would go to where they were held and be released. If a person fails to appear in court they would go to where they were held and be released.

B. When bonds are set, the court will set the bond amount. The bond amount is set by the court and is based on the severity of the crime and the defendant's criminal history.

C. Co-signers are people who are not the defendant and are not the surety agent. They are people who are willing to take on the financial risk of the bond. They are people who are willing to take on the financial risk of the bond.

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UNIT 3: Fugitive Recovery The Street

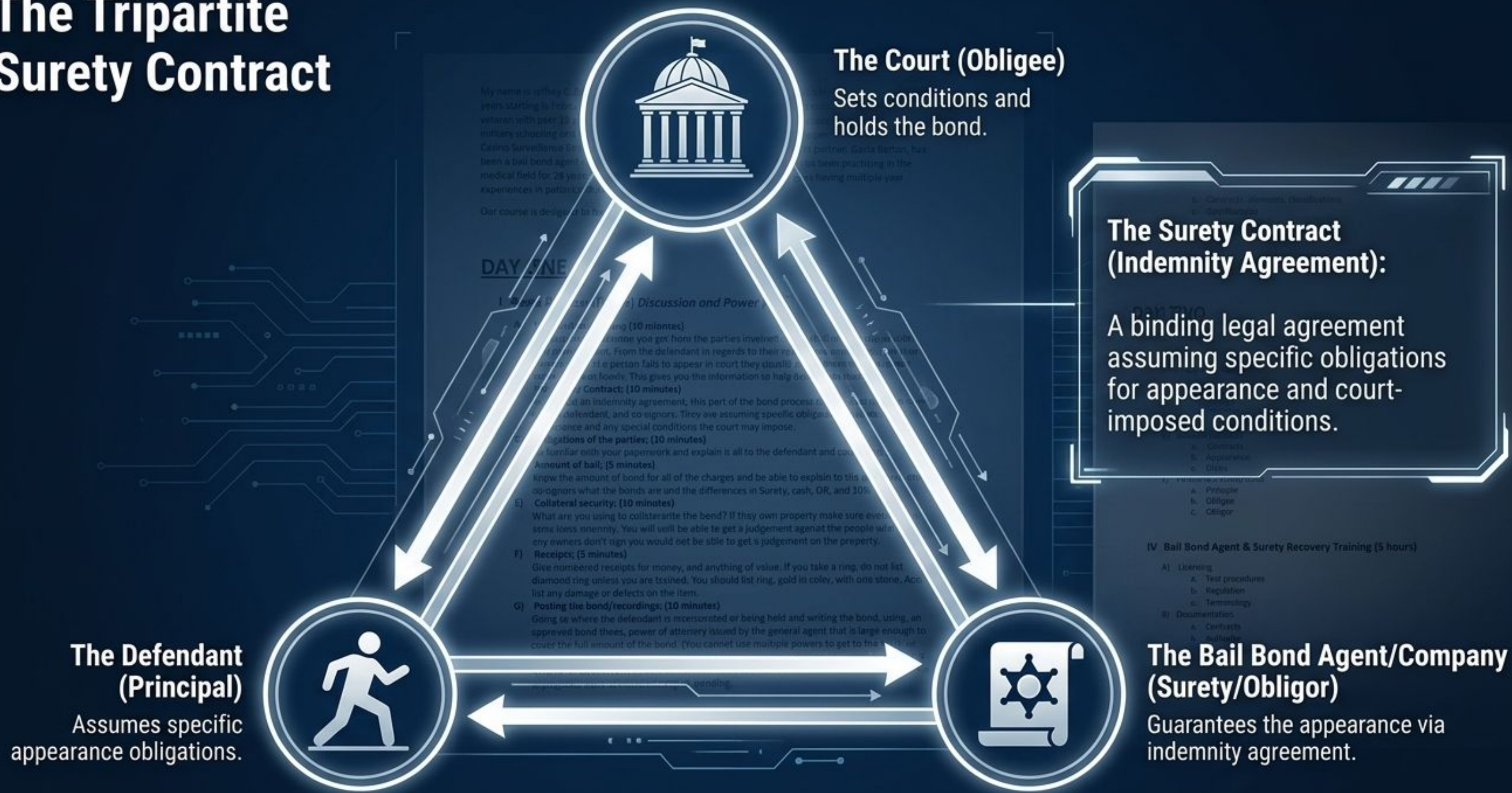
UNIT 2: The Courts & The Clock The Process

UNIT 4: The Enterprise The Business

UNIT 1: GROUND ZERO BAIL FOUNDATIONS

Establishing the Authority, the
Contract, and the Governing Body.

The Tripartite Surety Contract



Licensure & Financial Thresholds

RSMo Chapter 374 & DCI Oversight

II Areas of Law (Bond Statutes) (7 hours)

A) RSMo Chapter 374 (2.5 Hours)

The Governing Body

Defines the Department of Commerce and Insurance (DCI) and the Director.

Regulates all licensure, manages violations, and investigates complaints against agents.

Supreme Court Rule 33.17

C) Missouri supreme court Rules (2 Hour)

The \$10,000 Rule

To be accepted as a surety, an agent must:

- Be reputable and at least 21 years old.
- Possess net assets with a value in excess of exemptions of at least \$10,000 equal to the bond amount.
- Have NO felony convictions in the past 15 years.

Collateral Security & Intake Mechanics

CRITICAL RISK: Collateralizes the bond. If all property owners do not sign the indemnity agreement, you cannot get a judgment on the property.

✓ DO THIS

- ✓ Give numbered receipts for money and absolutely anything of value (RSMo 374.719).
- ✓ List items exactly as they appear without assuming material value.
- ✓ Write: "Yellow metal ring with one clear stone."
- ✓ **ALWAYS** document any existing damage, scratches, or defects upon intake.

DAY ONE

✗ NOT THAT

- ✗ Do not accept property without every owner's signature on the indemnity agreement.
- ✗ Do not guess the material or gemstone type.
- ✗ **WARNING:** Do not write "Diamond Ring" or "Gold" on the receipt unless you are a professionally trained appraiser.

Mandatory Tactical Compliance

SURETY GOLD

RSMo 374.757: Notification of Intention to Apprehend

Pre-Apprehension Dispatch Pre-Notification

Before executing a recovery, agents **MUST** notify local law enforcement of their intention to apprehend the defendant.

Local law enforcement may accompany the agent to the scene.

Failure to pre-notify constitutes a direct violation of licensure compliance and invites severe legal liability and physical risk.



KNOWLEDGE CHECK: The Intake Scenario

SCENARIO:

A co-signor offers their grandmother's antique gold and diamond necklace as collateral for a \$5,000 surety bond. They want you to write a receipt specifically for a '24k gold diamond necklace'.

QUESTION: According to DCI standards and basic liability protection, how exactly do you fill out this receipt?

ANSWER:

Yellow metal necklace with clear stones. Note any scratches/defects. Issue a numbered receipt.

UNIT 2: THE COURTS & THE CLOCK

RSMo 544, Supreme Court Rule 33, and
the Mechanics of Forfeiture.

The 4-Step Forfeiture Process

Statute Spotlight
Supreme Court Rule 33.14

Step 1: Failure to Appear (FTA)



Defendant misses court. Penalty invoked (RSMo 544.665).

Step 2: Notice of Forfeiture



The court officially notifies the Surety of the breach.

Step 3: Writ of Scire Facias



The formal legal demand for the penalty amount.

Step 4: Final Judgment



The court executes the judgment. The surety loses the money.

Scire Facias & The Cure Window

Statute Spotlight:

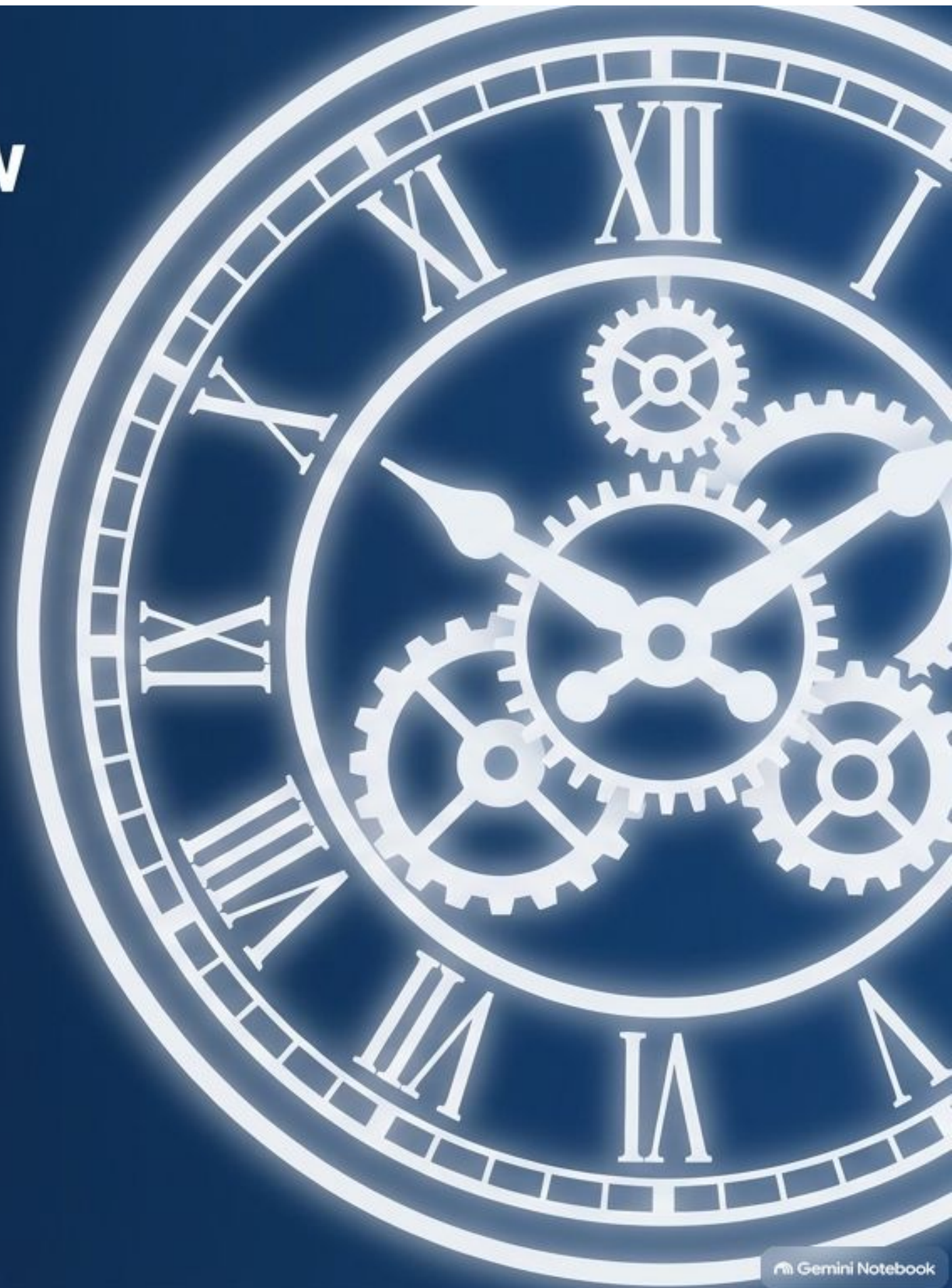
RSMo 544.650: Writ of scire facias, how served

The Writ: "Scire Facias" (Show Cause)

The court demands to know why final judgment should not be entered against the surety's assets.

The Clock: Once served, the agent enters a high-stakes countdown.

The Cure: The agent has exactly **180 DAYS** to locate, apprehend, and surrender the fugitive back into custody to satisfy the court and protect their financial assignment.



Administrative Survival: Address Updates

Surety Gold Statute Spotlight

Supreme Court Rule 33.16: Notice of Change of Address

C) Missouri supreme Court Rules (2 Hour)

THE RISK:

- If the court cannot find you, they cannot serve you the Writ of Scire Facias.
- If you do not receive the writ, the 180-day clock expires without your knowledge.

THE RULE:

- You must maintain a current, valid address with the court and DCI at all times.
- All changes must be formally updated within:
 - 10 DAYS to the court
 - 30 DAYS to DCI

PRACTICAL SCENARIO: The Ticking Clock

SCENARIO:

You wrote a \$10,000 bond. The defendant skipped court on March 1st. On March 15th, the court mailed a Writ of Scire Facias to your old office address because you forgot to update your file under Rule 33.16. You finally discover the writ on May 1st.

QUESTION: When did your 180-day cure window start, and what is your immediate priority?

ANSWER:

The clock started when the writ was issued/served, regardless of when you checked your mail. Immediate priority: OSINT tracking and pre-apprehension notification (RSMo 374.757) to execute a recovery before judgment is finalized.

UNIT 3: FUGITIVE RECOVERY & TACTICAL OPERATIONS

Navigating Common Law, Constitutional
Boundaries, and the Use of Force.

The Legal Conflict Matrix

Taylor v. Taintor (1872)	4th Amendment Payton Rules
Concept: The Common Law bedrock of Surety Recovery. Power: Grants the surety broad, sweeping powers to cross state lines, pursue the principal, and return them to custody. Authority stems from the private contract, not the state.	Concept: Constitutional boundaries on search and seizure. Limitation: Strictly prohibits agents from breaching or entering a third-party dwelling without explicit consent or a separate warrant.

YOU CAN HUNT THE FUGITIVE ANYVHERE, BUT YOU CANNOT KICK IN THEIR MOTHER'S DOOR TO GET THEM.

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- # Surveillance
- Physical observation of known residences, workplaces, and associates gathered from the 10-year employment/residence history taken during the initial bond application.

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Utilizing specialized skip-tracing databases to track utility bills, vehicle registrations, and recent credit inquiries.

Open Source Intelligence.
Monitoring social platforms for geotagged photos, relationship updates, and proof of life.

 Gemini Notebook

The Graham v. Connor Use of Force Pyramid

Level 4: Lethal Force

ONLY justified to protect against imminent threat of death or serious bodily injury.

Level 3: Less-Than-Lethal / Hard Control

Deployment of tactical restraints for active physical resistance.

Level 2: Soft Empty Hand Control

Escort holds, physically guiding a compliant subject.

Level 1: Officer Presence & Self-Identification

ID badges, tactical apparel, clear verbal commands.

Required Tactical Equipment

- Handcuffs
- Leg chains
- Belly chains
- Body cameras
(Essential for liability protection)
- Body armor
- Binoculars / Night vision for surveillance

KNOWLEDGE CHECK: The Third-Party Breach

SCENARIO:

OSINT tracking confirms your fugitive is inside their girlfriend's apartment. You have your certified copies of the bond. You pre-notified local dispatch (RSMo 374.757). You knock. The girlfriend opens the door, says "He's not here," and tries to shut it.

QUESTION: Under Taylor v. Taintor and the 4th Amendment, can you force the door open?

ANSWER:

NO. Without consent from the leaseholder (the girlfriend) or a specific warrant, forcing entry into a third-party dwelling violates 4th Amendment Payton rules. Secure the perimeter and call the local PD you previously notified.

UNIT 4: THE ENTERPRISE

Architecting a Sustainable
Surety Recovery Business.

The Complete 8-Stage Business Life Cycle

1

1. Licensing

24-Hr Training,
Pearson VUE Exam,
DCI Approval.

2

2. Setup

Acquiring Authority
from a General Bail
Bond Agent.

3

3. Origination

Application, Indemnity,
and the Tripartite
Contract.

4

4. Tracking

OSINT, Surveillance,
Sub-contracting skips.

6

6. Court Resolution

Surrender of Principal,
Beating the 180-Day Scire
Facias Clock.

7

7. Liability Management

Proper documentation of
property damage, injury,
avoiding false arrest.

8

8. Appreviewal

Continuing Education
(CE), maintaining strict
compliance.

8. Renewal

Continuing Education (CE),
maintaining strict compliance.

Final Directives & Continuing Operations

Veteran Support (GI Bill Benefits)

- Veterans taking the state licensing exam required by DCI can be fully reimbursed for the cost of the examination.
- Contact the VA or DESE Veterans Education for processing.

Next Steps & Maintenance

THE EXAM: Register with Pearson VUE for the Missouri Insurance/Bail Bond examination (scores valid for one year).

MAINTENANCE: 8 hours of Continuing Education (CE) required for biennial renewal. Keep your DCI address updated!

CONTACT DCI:

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